Jagdish Swarup, who was later appointed solicitor general of India, represented the judges.[4]

These proceedings presented difficulties for the Allahabad High Court. The chief justice of the high court (and in his absence, the most senior judge after the chief justice) is entrusted with the responsibility of case allocation. Since Chief Justice M.C. Desai was away, it fell upon the next most senior judge to allocate the case to a bench. He was reluctant to do so fearing that the bench would suffer similar consequences at the hands of the assembly. Ultimately, Jagdish Swarup offered an ingenious solution to the chief justice: that *all* the judges of the high court (aside from Justices Beg and Sehgal) should sit together to hear this case. This was not just a symbolic gesture of solidarity. The chief justice saw practical merit in the suggestion: 'the legislature will have to decide to arrest all the judges if they really persist in that course of action.'[5] The high court had just raised the stakes. Securing the custody of two judges was one thing, attempting to do so for every judge of the high court was quite another.

Chief Justice Desai returned to Allahabad, and a bench of twenty-eight judges was allocated to hear this case. This was the largest number of judges allocated to decide a case in a high court or the Supreme Court at the time. This record still stands over five decades later. The most significant decision in the Indian Supreme Court's history – the Kesavananda Bharati case[6] – was allocated to a bench of less than half the number of judges deciding this case. Courtrooms were not designed to accommodate benches of this size, making the seating arrangements for judges rather complex. Even though the chief justice's courtroom in Allahabad was large, chairs had to be arranged to seat the judges in two rows, rather than one (as is usually the case).[7] Unsurprisingly, the high court admitted the petitions filed by the judges, and restrained the government from securing the execution of arrest warrants against them. Solomon filed a petition shortly thereafter, with similar success. Keshav Singh did not get similar protection.

It was then the assembly's turn to respond, and it did so by partially retreating from its original position. The assembly passed a resolution indicating that it required the presence of Keshav Singh, Solomon and the